

Law Dialogue Lab

Realistic legal-workplace dialogues, role-play cards, and debrief prompts for advanced ESL learners

Audience: instructors, legal English coaches, peer practice groups, law-firm training teams, and legal operations teams

Focus: high-level professional English for legal workplaces, including client intake, confidentiality, privilege, litigation, discovery, legal writing, contracts, compliance, negotiation, advocacy, and realistic law-office dialogue.

Designed for advanced ESL learners who already work in law, compliance, contracts, legal operations, paralegal support, or law-adjacent business roles and need field-specific fluency.

Teaching stance: this is legal English training, not legal advice. Laws, procedures, professional rules, and court practices vary by jurisdiction and role. Learners should practice language, judgment, and documentation habits while relying on qualified counsel and local rules for legal conclusions.

How to Run the Dialogue Lab

1. Use groups of three: legal speaker, counterpart, observer.
2. Read the model dialogue once. Then replay it with new facts, different risk level, or a different audience.
3. The observer listens for terminology accuracy, careful caveats, fact development, role boundaries, confidentiality awareness, and decision clarity.
4. After each role-play, replay the hardest 30 seconds with a more precise legal-workplace sentence.

Facilitator guardrail

Do not let learners turn role-play into legal advice. Keep the focus on language, reasoning structure, ethical awareness, and escalation habits. When a scenario depends on actual law, ask learners to identify the question and source, not to invent the rule.

1. Client Intake: Strong Emotions, Missing Facts

Setting

A potential client calls after receiving a demand letter from a former business partner.

Speaker	Line
Client	They are lying. Can you tell them we will sue immediately?
Legal team	I understand this feels urgent. Before we discuss strategy, I need to gather facts and run a conflict check.
ESL learner	Can you send the demand letter, the contract, and any recent emails with the former partner? Also, please list the company names and individuals involved so we can check conflicts.
Client	So do we have a case?
ESL learner	I cannot assess that responsibly from one call. After we review the documents and confirm scope, we can identify claims, defenses, deadlines, and practical options.

Language notes

- Good intake language protects trust without promising an outcome.
- Conflict checks and engagement scope should come before substantive commitments.

Guided dialogue completion

I cannot assess that responsibly from one call. After we review the documents and confirm _____, we can identify claims, defenses, deadlines, and practical options.

Choose the missing language

Option	Phrase
A	scope
B	evidence
C	risk
D	owner

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

2. Partner Assignment: Research Memo Under Pressure

Setting

A partner asks for a quick memo on whether a forum-selection clause is enforceable.

Speaker	Line
Partner	I need an answer by noon. Is the forum-selection clause enforceable?
ESL learner	I can give you a short answer by noon. To focus the research, which jurisdiction controls, and are we challenging enforcement or defending it?
Partner	Defending it in federal court. The contract chooses Delaware law but the case was filed in California.
ESL learner	Understood. I will check binding Ninth Circuit authority, Delaware choice-of-law relevance, any public-policy exceptions, and procedural posture. I will flag contrary authority separately.

Language notes

- Clarify jurisdiction, posture, desired use, and deadline before researching.
- A legal memo should say how strong the answer is and why.

Guided dialogue completion

Understood. I will check binding Ninth Circuit authority, Delaware choice-of-law relevance, any public-policy exceptions, and procedural posture. I will flag contrary authority _____.

Choose the missing language

Option	Phrase
A	disclosure
B	separately
C	approval
D	control

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

3. Contract Redline: Indemnity and Liability Cap

Setting

A SaaS vendor and enterprise customer negotiate risk allocation.

Speaker	Line
Sales lead	The customer rejected our limitation of liability. Can we just accept?
Lawyer	Not without understanding the exposure.
ESL learner	The issue is not only the cap amount. Their redline excludes confidentiality, data security, IP infringement, and indemnity claims from the cap. That could create uncapped exposure.
Sales lead	What is a reasonable fallback?
ESL learner	We can offer a super-cap for data security and IP claims, tied to a multiple of fees, while keeping consequential damages excluded. I would not accept unlimited liability without executive approval.

Language notes

- Contract comments should connect clause language to business risk.
- Fallback language helps business teams negotiate without giving away the legal position too early.

Guided dialogue completion

We can offer a super-cap for data security and IP claims, tied to a multiple of fees, while keeping consequential damages excluded. I would not accept unlimited liability without executive _____.

Choose the missing language

Option	Phrase
A	approval
B	owner
C	scope
D	timeline

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

4. Discovery Meet-and-Confer: Overbroad Requests

Setting

Opposing counsel requests all communications from five years across every product line.

Speaker	Line
Opposing counsel	Your objections are boilerplate. We need all communications to understand the pattern.
ESL learner	We disagree that the request is proportional as drafted. It covers unrelated products, custodians, and time periods. We can propose targeted custodians, search terms, and a three-year window tied to the claims.
Opposing counsel	You are withholding relevant evidence.
ESL learner	We are not refusing discovery. We are asking to tailor the scope to nonprivileged, relevant, and proportional material. If you identify specific gaps, we can discuss them.

Language notes

- Meet-and-confer language should be firm, record-conscious, and professional.
- Avoid personal accusations; keep the discussion on scope, burden, relevance, and proportionality.

Guided dialogue completion

We are not refusing discovery. We are asking to tailor the _____ to nonprivileged, relevant, and proportional material. If you identify specific gaps, we can discuss them.

Choose the missing language

Option	Phrase
A	approval
B	scope
C	assumption
D	mitigation

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

5. Deposition Prep: Nervous Witness

Setting

A product manager will be deposed about an internal defect report.

Speaker	Line
Witness	What if I do not remember? I do not want to look unprepared.
ESL learner	If you do not remember, say that. Do not guess. Listen to the full question, answer only that question, and ask for clarification if a term is unclear.
Witness	Can I explain the whole background?
ESL learner	Only if the question asks for it. Your job is to testify truthfully, not to volunteer every fact. If privileged legal advice comes up, pause so counsel can address it.

Language notes

- Deposition prep language must be ethical: truthful, clear, and non-coaching as to substance.
- Learners should avoid scripts that tell a witness what facts to say.

Guided dialogue completion

Only if the question asks for it. Your job is to testify truthfully, not to volunteer every fact. If privileged legal advice comes up, pause so counsel can _____ it.

Choose the missing language

Option	Phrase
A	assumption
B	address
C	scope
D	timeline

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

6. Privilege Review: Copying a Lawyer Is Not Magic

Setting

A review team is deciding whether internal emails are privileged.

Speaker	Line
Reviewer	Legal is copied, so this is privileged.
ESL learner	Maybe, but not automatically. We need to ask whether the email seeks or gives legal advice, who received it, and whether confidentiality was maintained.
Reviewer	This one discusses pricing strategy with counsel copied.
ESL learner	That may be business advice rather than legal advice. Let's tag it for senior review instead of making the privilege call ourselves.

Language notes

- Privilege calls are jurisdiction- and fact-sensitive.
- Escalation language is better than overconfident privilege conclusions.

Guided dialogue completion

That may be business advice rather than legal advice. Let's tag it for senior review instead of making the privilege call _____.

Choose the missing language

Option	Phrase
A	control
B	ourselves
C	mitigation
D	approval

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

7. Motion Strategy: Dismiss or Summary Judgment?

Setting

The team discusses whether to challenge a weak claim early.

Speaker	Line
Client	The claim is false. Can we file a motion to dismiss?
Lawyer	A motion to dismiss usually tests legal sufficiency, not whether the facts are true.
ESL learner	If the complaint fails to state a required element, dismissal may be worth researching. If our argument depends on evidence outside the pleadings, summary judgment may be the better later vehicle.
Client	So we wait?
ESL learner	We should evaluate cost, timing, likelihood of success, and whether an early motion educates the court or only delays discovery.

Language notes

- Procedural posture changes the available argument.
- A client-friendly explanation should distinguish legal sufficiency from factual proof.

Guided dialogue completion

We should evaluate cost, timing, likelihood of success, and whether an early motion educates the court or only delays _____.

Choose the missing language

Option	Phrase
A	discovery
B	disclosure
C	evidence
D	risk

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

8. Settlement Caucus: Risk, Cost, and Authority

Setting

During mediation, the client wants to reject a settlement offer on principle.

Speaker	Line
Client	I would rather go to trial than pay them anything.
ESL learner	That is a valid business position, but let's separate principle from decision risk. Trial could vindicate the company, but it also means legal fees, management distraction, uncertainty, and potential adverse precedent.
Client	What range do you recommend?
ESL learner	Based on current evidence, litigation cost, and downside exposure, I recommend authority up to this range, but only with confidentiality, no admission of liability, and a mutual release.

Language notes

- Settlement language should respect client values while surfacing decision consequences.
- Authority, release, confidentiality, and non-admission terms often matter as much as amount.

Guided dialogue completion

Based on current _____, litigation cost, and downside exposure, I recommend authority up to this range, but only with confidentiality, no admission of liability, and a mutual release.

Choose the missing language

Option	Phrase
A	control
B	disclosure
C	evidence
D	approval

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

9. Compliance Review: Advertising Claim Substantiation

Setting

Marketing wants to launch an ad saying a product is 'clinically proven' to improve focus.

Speaker	Line
Marketing	Competitors make stronger claims than this. Can we approve it?
ESL learner	We need substantiation for the express and implied claims before launch. 'Clinically proven' suggests reliable evidence, not just user testimonials.
Marketing	We have a small internal survey.
ESL learner	That may support customer satisfaction, but probably not a clinical efficacy claim. A safer path is to revise the claim to match the evidence or obtain stronger support before release.

Language notes

- Compliance review often turns on what a reasonable consumer may take from the claim.
- The legal team should propose a compliant alternative, not only block the campaign.

Guided dialogue completion

That may support customer satisfaction, but probably not a clinical efficacy claim. A safer path is to revise the claim to match the _____ or obtain stronger support before release.

Choose the missing language

Option	Phrase
A	scope
B	evidence
C	risk
D	owner

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

10. Board Briefing: Material Risk and Disclosure

Setting

An in-house legal team briefs executives on a regulatory inquiry.

Speaker	Line
CFO	Do we have to disclose this inquiry?
General counsel	We need a materiality analysis before answering.
ESL learner	Current facts: the regulator requested documents, no allegations have been filed, potential exposure is uncertain, and the issue relates to a growing product line. The disclosure question depends on likelihood, magnitude, existing public statements, and investor significance.
CFO	Can we say it is not material?
ESL learner	I would not say that yet. We can say legal is assessing materiality and will update the disclosure committee after reviewing the request and business impact.

Language notes

- Materiality language should not be rushed.
- Board and executive updates need known facts, unknowns, timing, owner, and decision path.

Guided dialogue completion

I would not say that yet. We can say legal is assessing materiality and will update the disclosure committee after reviewing the request and business _____.

Choose the missing language

Option	Phrase
A	owner
B	scope
C	timeline
D	impact

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

11. Internal Investigation: Neutral Interviewing

Setting

Legal interviews an employee about a possible policy violation.

Speaker	Line
Employee	Am I being accused of something?
ESL learner	We are gathering facts about a concern that was reported. I am not here to argue with you or make a final decision today.
Employee	Should I delete my personal notes?
ESL learner	No. Please preserve documents and messages that may relate to this topic. If you are unsure whether something is relevant, ask before deleting or changing it.
Employee	Can you tell me what other people said?
ESL learner	I cannot share interview details. I can ask you about your own recollection and any documents that may help us understand the timeline.

Language notes

- Investigation questions should avoid suggesting the desired answer.
- Preservation language should be simple, direct, and documented.

Guided dialogue completion

I cannot share interview details. I can ask you about your own recollection and any documents that may help us understand the _____.

Choose the missing language

Option	Phrase
A	timeline
B	assumption
C	mitigation
D	approval

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

12. Oral Argument: Answering the Hard Question

Setting

A judge asks about the weakest point in counsel's statutory interpretation.

Speaker	Line
Judge	Counsel, does your reading make subsection (c) unnecessary?
ESL learner	No, Your Honor. Subsection (c) still does work in two situations. First, it covers post-termination conduct. Second, it supplies the remedy when the notice period has expired.
Judge	But the other side says that is not in the text.
ESL learner	Respectfully, the text supports it when subsections (b) and (c) are read together. If the Court disagrees, our narrower fallback is that dismissal should be without prejudice because the defect is curable.

Language notes

- Advocacy language should answer directly, then explain.
- Fallback arguments preserve credibility when the main argument faces pressure.

Guided dialogue completion

Respectfully, the text supports it when subsections (b) and (c) are read together. If the Court disagrees, our narrower fallback is that dismissal should be without prejudice because the defect is _____.

Choose the missing language

Option	Phrase
A	curable
B	timeline
C	assumption
D	mitigation

Observer checklist

- Did the learner separate facts, assumptions, legal issues, and conclusions?
- Did the learner use legal terminology accurately and define it when useful?
- Did the learner preserve confidentiality, privilege, conflict, and role boundaries?
- Did the learner make a clear next step, recommendation, or escalation path?

Answer Key and Rationale

Check each answer after completing the dialogue. The rationale shows why the correct phrase is the strongest fit for the real workplace situation.

1. Client Intake: Strong Emotions, Missing Facts

Correct answer	Why it fits
A. scope	'scope' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

2. Partner Assignment: Research Memo Under Pressure

Correct answer	Why it fits
B. separately	'separately' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

3. Contract Redline: Indemnity and Liability Cap

Correct answer	Why it fits
A. approval	'approval' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

4. Discovery Meet-and-Confer: Overbroad Requests

Correct answer	Why it fits
B. scope	'scope' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

5. Deposition Prep: Nervous Witness

Correct answer	Why it fits
B. address	'address' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

6. Privilege Review: Copying a Lawyer Is Not Magic

Correct answer	Why it fits
B. ourselves	'ourselves' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

7. Motion Strategy: Dismiss or Summary Judgment?

Correct answer	Why it fits
A. discovery	'discovery' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

8. Settlement Caucus: Risk, Cost, and Authority

Correct answer	Why it fits
C. evidence	'evidence' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

9. Compliance Review: Advertising Claim Substantiation

Correct answer	Why it fits
B. evidence	'evidence' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

10. Board Briefing: Material Risk and Disclosure

Correct answer	Why it fits
D. impact	'impact' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

11. Internal Investigation: Neutral Interviewing

Correct answer	Why it fits
A. timeline	'timeline' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

12. Oral Argument: Answering the Hard Question

Correct answer	Why it fits
A. curable	'curable' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.